

25VECV06494 25VECV06494

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Case Number: 25VECV06494 Hearing Date: August 11, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JANE DOE 2, an individual,

Plaintiff,

vs.

LOVY ELIAS, an individual; REVELATION CHURCH LA, a religious organization; and DOES 1 through 50, inclusive.

Defendants.

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Related Case: 25VECV06269 (lead)

ORDER DENYING DEFENDANT REVELATION CHURCH LA'S MOTION TO STRIKE

Plaintiff Jane Doe 2 ("Plaintiff") commenced this action against defendants Lovy Elias ("Elias") and Revelation Church LA ("RCLA") on November 12, 2025. Plaintiff asserts claims for (1) Sexual Battery (against Elias), (2) Sexual Harassment, (3) Violation Of Civil Code Section 1708.85 (against Elias), (4) Intentional Infliction Of Emotional Distress (against Elias), (5) Fraudulent Misrepresentation (Including Promissory Fraud) (against Elias), (6) Negligence, in two counts (Count two against RCLA), (7) Breach of Fiduciary Duty, (8) Negligent Hiring, Supervision, And Retention (against RCLA), (9) Money Had And Received/Unjust Enrichment, (10) Conversion (against Elias), (11) Unfair Competition, (12) Public Disclosure of Private Facts.

Plaintiff alleges Elias, who holds himself out as a religious and spiritual leader affiliated with RCLA, leveraged his position over Plaintiff by intentionally and fraudulently misrepresenting his marital status and future intentions, coercing Plaintiff to surrender substantial sums of money and submit to a physically intimate relationship, falsely claiming that these actions were required for her spiritual advancement, the healing of her parents, and the will of God.

II. PROCEDURAL HISTORY

On November 12, 2025, Plaintiff filed a Complaint.

On April 28, 2026, the previously assigned bench officer sustained Elias's demurrer with leave to amend. That bench officer also granted in part Plaintiff's Motion for Order Authorizing Discovery under Code of Civil Procedure § 425.16(g)[1]. That bench officer also sustained RCLA's Demurrer and Motion to Strike with leave to amend.

On May 26, 2026, this Court related this case with Case No. 25VECV06269.

On May 13, 2026, Plaintiff filed a Second Amended Complaint ("SAC").

On July 16, 2026, RCLA filed the instant Demurrer with Motion to Strike.

On July 29, 2026, Plaintiff filed her Oppositions.

On August 4, 2026, RCLA filed its Replies.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

RCLA's counsel satisfied her meet and confer obligation. (See Declaration of Theresa C. Becerra filed July 16, 2026, ¶ 5.)

IV. DEMURRER

A. Legal Standard

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).) "A demurrer tests the sufficiency of a complaint as a matter of law." *¿* (Durell v. Sharp Healthcare, (2010) 183 Cal.App.4th 1350, 1358.) "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." *¿* (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court, (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court, (1986) 180 Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader's allegations as to the legal effect of the exhibits. (See Barnett v. Fireman's Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action. *¿* (See Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

A demurrer may be brought if the pleading is uncertain, ambiguous, or unintelligible. (See Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See People v. Taliaferro (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See *ibid.*; see also Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 “[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Judicial Notice

The Court grants Plaintiff's requests for judicial notice pursuant to Evidence Code § 452(d) and (h).

C. Analysis

1. Plaintiff's Section 51.9 Claim Fails to Allege the Requisite Relationship

Civil Code § 51.9 renders a defendant liable who “ma[kes] sexual advances, solicitations, sexual requests, demands for sexual compliance by the plaintiff, or engage[s] in other verbal, visual, or physical conduct of a sexual nature or of a hostile nature based on gender”, where there is “a business, service, or professional relationship between the plaintiff and defendant or the defendant holds himself or herself out as being able to help the plaintiff establish a business, service, or professional relationship with the defendant or a third party.” (Civ. Code § 51.9(a)(1)-(2).)

The statute states an illustrative list of persons for whom “such a relationship” may exist with a plaintiff, including a physician, attorney, landlord, teacher, or director or producer, and expressly includes any “relationship that is substantially similar” to those enumerated. (*Id.*, § 51.9(a)(1).)

RCLA argues this cause of action is insufficiently stated against Elias, and thereby it is insufficient against RCLA, because the Court previously rejected Plaintiff's theory that Elias' position as a pastor was within the scope of Civil Code § 51.9. (See Dem. at 2:15-16.) Second, RCLA argues Plaintiff's allegations of participation in ministry activities do not convert Elias' pastoral guidance into a “business, service, or professional relationship” for purposes of § 51.9. (See *id.*, at 3:3-6.) Third, RCLA argues under *Richelle L. v. Roman Catholic Archbishop* (2003) 106 Cal.App.4th 257 and this Court's June 1, 2026, Doe 1 ruling, a civil claim must arise from a duty independent of Elias' claimed spiritual authority and pastoral guidance. (See *id.*, at 3:9-14.) Fourth, RCLA argues the anti-heart-balm statutes at Civil Code §§ 43.4 and 43.5 and *Richelle L.* bar recharacterization of barred “amatory” allegations as statutory or common-law torts. (See *id.*, at 3:16-23.) Fifth, RCLA argues even if Plaintiff could state a claim against Elias, RCLA is not liable for Elias' tortious conduct that does not occur within the scope of Elias' pastoral duties. Plaintiff only makes conclusory allegations that Elias' tortious conduct was undertaken within the scope of Elias's pastoral duties. (See *id.*, at 3:25-4:6, citing *Jeewarat v. Warner Bros. Entertainment, Inc.* (2009) 177 Cal.App.4th 427, 435 and *Lisa M v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Ca1.4th 291, 300- 302.)

In opposition, Plaintiff argues the FAC pleads a tuition-based teaching relationship that falls within the scope of Civil Code § 51.9. Plaintiff argues the FAC alleges she applied to Prophetic School 3.0 in writing, by a personal letter emailed to Elias (see FAC, ¶ 33), she was admitted (see *id.*, ¶ 46), she was charged tuition of \$6,000 (see *id.*, ¶ 48), and she attended a defined course of instruction on a published schedule. (See *id.*, ¶¶ 49–50.) Second, Plaintiff argues this claim is not barred by Civil Code §§ 43.4 and 43.5 because this claim is based on conduct arising from a paid instructional relationship. (See Opp. at

12:25-13:4.) Third, Plaintiff argues RCLA would be vicariously liable because the FAC alleges RCLA ran the school, accepted the application, and collected Plaintiff's money. (See Opp. at 13:5-12, citing *C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110-1112.)

In reply, RCLA argues this Court should find, as it did in its *Doe 1* ruling, Plaintiff fails to state a claim against Elias and therefore fails to state RCLA was vicariously liable. (See Reply at 1:13-27.) Next, RCLA argues Plaintiff's reliance on allegations recasting Plaintiff's relationship with Elias as a teacher relationship does not bring it within the types of secular professional relationships contemplated by Civil Code § 51.9 and *C.R. v. Tenet*. (See *id.*, at 2:5-17.) RCLA also argues *Richelle L.* holds a secular court cannot measure a religious program by the secular standards a § 51.9 profession would demand. Finally, RCLA argues even if the alleged three-day program qualified, § 51.9 reaches only harassment arising within the relationship.

The Court is unpersuaded Plaintiff's new allegations of a tuition-based teaching relationship between Plaintiff and Elias brings this claim within the scope of Civil Code § 51.9. The Ninth Circuit persuasively discussed the construction and purpose of section 51.9 in *Judd v. Weinstein* (2020) 967 F.3d 952, 957:

"[E]ach of the enumerated examples consists of a relationship wherein an inherent power imbalance exists such that, by virtue of his or her 'business, service, or professional' position, one party is uniquely situated to exercise coercion or leverage over the other. This is the key element common to every example in the statute. For example, teachers can exercise coercive power over their students because they control their students' grades. Similarly, landlords can exercise coercive power over their tenants because they control access to the tenant's security deposits and, at least to some extent, access to the premises."

In *Judd*, the Ninth Circuit depended on facts demonstrating the relationship between the plaintiff and the defendant "was characterized by a considerable imbalance of power substantially similar to the imbalances that characterize the enumerated relationships in section 51.9." (*Id.*)

First, the Court agrees with RCLA's point that a three-day program would be insufficient to create a student-teacher relationship for all conduct from which Plaintiff seeks relief. Here, the FAC alleges the pastor-parishioner and spiritual-counselor-counselee relationship between Elias and Plaintiff falls within the relationships enumerated in § 51.9, subdivision (a)(1)(D)-(F), or within a relationship that is substantially similar to those enumerated, pursuant to subdivision (a)(1)(I). (See *id.*, ¶¶ 130-131.) The FAC also alleges Plaintiff joined a three-day program from August 14 to 16, 2020, taught by Elias. (See FAC, ¶ 33, 49.) Assuming *arguendo* the alleged teaching program created a professional relationship akin to that of student-teacher, this relationship allegedly existed for only three days. However, the majority of the FAC's alleged conduct occurred before and after this three-day student-teacher relationship existed. (See e.g., FAC, ¶ 63.) Accordingly, this pastoral teaching relationship is insufficient as alleged to support the creation of a student-teacher relationship under § 51.9 from which the conduct which forms the basis of Plaintiff's claim can give rise to relief.

Further, allegations a pastor-parishioner and spiritual-counselor-counselee relationship existed are also insufficient to sustain a § 51.9 claim because the FAC does not allege any power attached to that position in the sense contemplated by § 51.9. The Court further agrees with Defendant that § 51.9 contemplates secular professional relationships. Here, the FAC appears to allege a power imbalance existed based on Plaintiff's belief of Elias' control over "Plaintiff's perceived spiritual destiny" and her belief in Elias's authority as a "a prophet who 'hears from God himself.'" (FAC, ¶¶ 6, 109, 135.) However, the Court finds allowing such a relationship to support a § 51.9 claim would be inconsistent with constitutional considerations discussed in *Richelle L.*, as determining whether there existed a power imbalance in a pastor-parishioner or spiritual-counselor-counselee "would necessitate a constitutionally impermissible inquiry into religious doctrine." (*Richelle L.*, 106 Cal.App.4th at 281, discussing *Langford v. Roman Catholic Diocese of Brooklyn* (1998) 177 Misc.2d 897, 900.) Thus, the Court finds Plaintiff does not allege a relationship necessary to state a § 51.9 claim against Elias and thereby Plaintiff fails to state a claim against RCLA.[2]

Furthermore, given the religious freedom implications of how Plaintiff has framed her section 51.9 cause of action in light of *Richelle L.*, the Court finds there is no reasonable possibility an amendment will cure the defect in this claim. Accordingly, the Court SUSTAINS RCLA's Demurrer to the Second Cause of Action for Sexual Harassment (Civil Code § 51.9) WITHOUT

LEAVE TO AMEND.

2. Plaintiff Has Failed to State a Negligence Claim

“To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’ [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care.” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213.) “The first element, duty, ‘may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.’” (Doe v. United States Youth Soccer Assn., Inc. (2017) 8 Cal.App.5th 1118, 1128.) “A special relationship exists when ‘the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff’s welfare. [Citation.]’” (Id., at 1129.) “[T]he existence of a duty is a question of law for the court.” (Kentucky Fried Chicken of Cal. v. Superior Court (1997) 14 Cal.4th 814, 819.)

RCLA argues the negligence claim fails because Elias’ alleged conduct is not within the course and scope of Elias’ pastoral role such that RCLA could be held vicariously liable. (See Dem. at 4:11-16, citing Lisa M v. Henry Mayo Newhall Memorial Hospital (1995) 12 Ca1.4th 291, 300-302.) RCLA also argues to the extent this cause of action requires tolling, the FAC fails to plead it with the specificity the doctrine demands. (See Dem. at 5:10-11.)

In opposition, Plaintiff argues Lisa M. does not apply because this claim is for RCLA’s direct negligence and this claim alleges all requisite elements. (See Opp. at 13:18-26.)

In reply, RCLA reasserts that Lisa M. precludes vicarious liability for the alleged sexual misconduct. (See Reply at 3:3-10.) RCLA also argues this negligence claim based on RCLA’s employment of Elias fails to plead RCLA had prior knowledge his employment would cause a risk of harm. (See id., at 3:11-21.)

The Court finds the claim is insufficiently stated because no duty is alleged. The FAC alleges generally “RCLA owed a duty to its members, parishioners, and program participants...” (FAC, ¶ 172.) The FAC alleges “RCLA breached its duty by, among other things, failing to supervise Elias...and ignoring or condoning the storage of intimate images of women on RCLA-affiliated systems.” (Id., ¶ 173.)[3] The Court finds the FAC fails to allege the existence of a duty by a special relationship because there are no allegations Plaintiff depended on RCLA, who had some control over Plaintiff.

Accordingly, the Court SUSTAINS RCLA’s Demurrer to the Sixth Cause of Action for Negligence WITH LEAVE TO AMEND.

3. Plaintiff’s Breach of Fiduciary Duty Claim Fails

“The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.) A fiduciary relation or confidential relationship may give rise to a fiduciary duty. (See Richelle L., supra, 106 Cal.App.4th at 270.) “Unlike confidential relations, fiduciary relations arise out of certain canonical relationships that are legally defined and regulated.” (Id., at 271 [providing conservator and conservatee, principal and agent, attorney and client as examples fiduciary relationships].) The essential elements of a confidential relationship that give rise to a fiduciary duty are “1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself.” (Id., at 272.)

RCLA argues (1) the FAC fails to allege an actionable fiduciary or confidential relationship between RCLA and Plaintiff, (2) there is no secular confidential relation alleged between Plaintiff and Elias, (3) the claim impermissibly repackages allegations barred by Civil Code §§ 43.4 and 43.5, and (4) the FAC’s tolling allegations fail to specify when or how Plaintiff discovered RCLA’s alleged breaches. (See id., at 5:22-26 citing Richelle L., 106 Cal.App.4th at 272-273 and Cohen v. Kabbalah Centre International, Inc. (2019) 35 Cal.App.5th 13, 22–23; 6:13-20; 6:22.)

In opposition, Plaintiff argues Richelle L. permits liability where a duty arises independent of the pastoral relationship. Plaintiff argues the FAC's allegations here meet this standard as it alleges Elias supplied Plaintiff money from RCLA's accounts and thus, a confidential relationship is alleged. (See Opp. at 15:3-11.)

In reply, RCLA reasserts that Plaintiff does not identify a secular fiduciary undertaking by RCLA running to her. (See Reply at 3:28-4:2.) RCLA argues Plaintiff alleges money flowed from RCLA to her not that Plaintiff entrusted property or money with RCLA. (See id., at 4:6-7.)

The Court finds the breach of fiduciary duty claim insufficiently alleges a confidential relationship between RCLA and Plaintiff. Here, the FAC alleges "RCLA, through its acceptance of donations, its operation of programs in which Plaintiff participated, and its holding out of Elias as its pastor and representative, likewise undertook a fiduciary and confidential relationship with Plaintiff." (FAC, ¶ 177.) The Court finds the FAC does not allege a recognized legal relationship between Plaintiff and Elias/RCLA and thus, likewise fails to allege a fiduciary relationship. The FAC also does not allege a confidential relationship between the Plaintiff and Defendants. There are no allegations Plaintiff was vulnerable to RCLA which resulted in the empowerment of RCLA over Plaintiff, that RCLA solicited or accepted empowerment over Plaintiff, or that Plaintiff's vulnerability prevented her from effectively protecting herself. (See Richelle L., 106 Cal.App.4th at 273 [vulnerability is a necessary predicate of a confidential relation which "usually arises from advanced age, youth, lack of education, weakness of mind, grief, sickness, or some other incapacity."].)

Further, to the extent this claim alleges RCLA is vicariously liable for Elias' alleged breach of fiduciary duty, the Court agrees with RCLA that Richelle L. precludes a finding of a fiduciary duty owed by Elias, a pastor, to Plaintiff, his parishioner. Here, the FAC alleges "Elias, as Plaintiff's pastor, spiritual counselor, and self-proclaimed "prophet" and "spiritual father," stood in a fiduciary and confidential relationship with Plaintiff. He had assumed the role of spiritual advisor and guide, accepted Plaintiff's trust and confidence, and exercised dominion and influence over her..." (FAC, ¶ 176.) The FAC alleges Elias' seeking financial contributions were "sacrifices" that are "required to show willingness to 'receive from the prophet' (i.e., Elias himself)." (Id., ¶¶ 25-28.) The FAC alleges Elias' seeking a physical relationship with Plaintiff were also guided by his belief as a prophet and to "deliver her from the 'demon' of lust..." and that "Plaintiff believed she should not disobey Elias, the prophet..." (Id., ¶¶ 76, 77, 85.)

The Court finds these allegations cannot support a finding of a fiduciary duty. Two relevant holdings established in Richelle L. are that a fiduciary duty arising from a confidential relation may arise where the "alleged injurious conduct was not dictated by a sincerely held religious belief...", and a confidential relation requires a vulnerable position that cannot be adjudicated by referencing the nature of a plaintiff's religious beliefs. (See Richelle L., 106 Cal.App.4th at 280-81.) Plaintiff's FAC suffers from this latter defect as the FAC alleges Plaintiff was vulnerable to Elias because she believed he was a "a prophet who 'hears from God himself.'" (FAC, ¶ 6.) Because a jury would have to inquire into the legitimacy of Plaintiff's religious beliefs to find that she was in a vulnerable position, as necessary to establish a confidential relation, the Court finds Plaintiff cannot allege a fiduciary duty owed by Elias for which RCLA could be vicariously liable for.

Thus, like her section 51.9 claim discussed above, the Court finds there is no reasonable probability Plaintiff can successfully amend her breach of fiduciary duty claim. As a result, the Court SUSTAINS RCLA's Demurrer to the Seventh Cause of Action for Breach of Fiduciary Duty WITHOUT LEAVE TO AMEND.

4. Plaintiff's Negligent Hiring, Supervision, and Retention Cause of Action Fails As Well

"[A]n employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.) The elements of a cause of action for negligent hiring, retention, or supervision are (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer knew or should have known the employee was unfit; and (4) harm occurs. (See Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

"To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902;

Doe, supra, 50 Cal.App.4th at 1054.) “[T]he cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way.” (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054-1055.)

RCLA argues the FAC fails to allege facts showing it had prior knowledge of the particular risk that materialized. RCLA argues Plaintiff’s allegations that RCLA was aware of rumors or complaints fails to allege whether such knowledge predated Plaintiff’s injuries. (See Dem. at 7:7-21.) RCLA also argues Plaintiff’s tolling allegations are uncertain as the FAC pleads no dates. (See id., at 7:23-27.)

In opposition, Plaintiff alleges paragraph 184 is sufficient to allege RCLA’s antecedent knowledge. (See Opp. at 15:18-25.)

In reply, RCLA argues the FAC makes only conclusory allegations RCLA knew of Elias’ alleged unfitness. (See Reply at 4:19-24.)

The Court finds Plaintiff’s negligent hiring claim is insufficient because it fails to allege antecedent knowledge. Here, the FAC alleges “RCLA knew, or in the exercise of reasonable care should have known, that Elias was unfit for his role...RCLA was aware, or should have been aware, of red-flag conduct, including...Elias’s pattern of soliciting nude images from female parishioners; the storage of such images on RCLA-affiliated systems...Elias’s sexually invasive questioning of parishioners; his use of RCLA funds for personal and improper purposes....” (FAC, ¶ 184.) The Court finds the FAC’s conclusory allegations of antecedent knowledge does not provide enough specificity to support RCLA’s liability for negligent hiring, supervision, or retention.

Thus, the Court SUSTAINS RCLA’s Demurrer to the Eighth Cause of Action for Negligent Hiring, Supervision, and Retention WITH LEAVE TO AMEND.

5. Plaintiff’s Money Had and Received/Unjust Enrichment Claim is Defective

A cause of action for money had and received is stated if it is alleged that the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff. (See Avidor v. Sutter’s Place, Inc. (2013) 212 Cal.App.4th 1439, 1454.) A claim for money had and received is viable wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter. (See id.) “When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable.” (McBride v. Boughton (2004) 123 Cal.App.4th 379, 394.)

In California, there is no cause of action for unjust enrichment. (See Rutherford Holdings LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231; Levine v. Blue Shield of California (2010) 189 Cal.App.4th 1117, 1138.)

RCLA alleges this claim is derivative and likewise fails. (See Dem. at 8:12-20, citing McBride, 123 Cal.App.4th at 394.) RCLA argues this claim independently fails because it would require the Court to determine whether Elias’ religious representations of “sacrifices” were insincere and Plaintiff alleges her financial contributions were voluntary. (See Dem. at 8:24-28, 9:4-17.) Finally, RCLA argues the claim is time barred under CCP § 339 as every payment identified in the FAC occurred more than five years before Plaintiff commenced this action. (See id., at 9:22-26.) RCLA argues Plaintiff cannot toll this injury under the delayed discovery rule because she knew at the time she made a cash contribution and it cannot be tolled under concealment or equitable estoppel because Plaintiff does not allege RCLA concealed its internal handling of the funds. (See id., at 10:6-19.)

In opposition, Plaintiff argues the FAC alleges Plaintiff’s payments continued until December 2023, and thus, payments made within two years of November 12, 2025, are timely. (See Opp. at 16:11-20.) Plaintiff also argues accrual runs from the discovery of fraud, which Plaintiff alleges she did not discover until later. (See id., at 16:24-26, citing FAC, ¶ 104(f).)

In reply, RCLA argues the FAC alleges no receipt of Plaintiff's money by RCLA within the limitations period at all, instead the FAC alleges payments to RCLA occurred in 2020. (See Reply at 6:3-10.) The FAC's paragraph 87 alleges Elias continued to receive money until 2023, not RCLA. (See id.)

Here, the FAC alleges Plaintiff made cash contributions to RCLA for "the money [to] be applied to RCLA, to ministry, or to spiritual purposes for Plaintiff's benefit, including the spiritual healing of her family. Defendants received and retained those sums for the use of Plaintiff and have failed to return them. Defendants accepted and retained the funds by means of fraud..." (See FAC, ¶¶ 189, 190-191.) The Court finds Plaintiff fails to allege the money she contributed to RCLA was to be used for her benefit. Plaintiff's theory the money was to be used for her spiritual benefit or spiritual healing is insufficient because this is not a measurable economic or material benefit to the Plaintiff. The Court is unable to determine whether a spiritual benefit was delivered to Plaintiff without reference to religious beliefs or doctrines. Thus, even under the liberal notice pleading standards in this state, her claim fails.

Thus, the Court SUSTAINS RCLA's Demurrer to the Ninth Cause of Action for Money Had and Received/Unjust Enrichment WITH LEAVE TO AMEND.

6. Plaintiff's Unfair Competition Claim Fails to Allege a Business Practice

To set forth a UCL claim, Plaintiff must establish Defendant was engaged in an "unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising" and certain specific acts. (See Bus. & Prof. Code § 17200.) "An action under the UCL 'is not an all-purpose substitute for a tort or contract action.'" (That v. Alders Maintenance Assn. (2012) 206 Cal.App.4th 1419, 1427.) "Proposition 64 amended the UCL to provide a standing requirement for persons seeking relief under the UCL: a person bringing an action under the UCL must establish that he or she "has suffered injury in fact and has lost money or property as a result of the unfair competition." (Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235; see also Gray v. Dignity Health (2021) 70 Cal.App.5th 225, 237.)

"A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1473.) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (See West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 806.)

RCLA argues the FAC fails to allege any RCLA ongoing business act or practice distinct from religious ministry activity and thus the claim requires impermissible adjudication of religious questions in violation of the First Amendment. (See Dem. at 11:26-28, 12:4-8.) RCLA cites Alders, 206 Cal.App.4th at 1427-1428, for the proposition that nonprofit and noncommercial activity lack commerciality the UCL was intended to address. (See id., at 11:17-21.) RCLA also argues to the extent the UCL claim rests on romantic deception, promises of marriage or exclusivity, concealment of other relationships, or seduction-based allegations, it is independently barred by Civil Code §§ 43.4 and 43.5. (See id., at 12:17-19.)

Plaintiff argues she sufficiently alleges charging \$6,000 in tuition is a business practice as California has held misrepresentations made to obtain charitable contributions are actionable under the unfair competition. (See Opp. at 17:14-19, citing various authorities.) Plaintiff argues the FAC pleads ongoing conduct from May 2020 to December 2023 and standing in the form of monetary loss. (See id., at 18:4-10.)

In reply, RCLA reasserts Alders holds non-commercial conduct is not a business act or practice. (See Reply at 7:10-14.) RCLA argues Plaintiff's cited authority is inapplicable as those cases were enforcement actions by the Attorney General and Department of Motor Vehicles and concerned secular misrepresentations. (See id., at 7:15-22.) Further, RCLA argues Plaintiff's unfair and fraudulent pro theories implicate religious representations and doctrines. (See id., at 8:1-10.)

The Court is persuaded by RCLA's argument the FAC does not allege a business act or practice under the UCL. Here, the FAC alleges "Defendants engaged in business activities...including the solicitation and acceptance of donations, the

operation of fee-based programs such as Prophetic School 3.0 (for which Plaintiff was charged \$6,000), the marketing of ministry products and services, the operation of online livestreams and Zoom programs, and the operation of a religious organization in California.” (FAC, ¶ 201.)

“The UCL’s purpose is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services. [Citation.]” (Alders, 206 Cal.App.4th at 1427.) Accordingly, Alders held a homeowner’s association, which does not participate as a business in the commercial market, held if it “decided to sell products or services that are strictly voluntary purchases for members or nonmembers, it might be liable for such acts under the UCL.” (Id.) The issue in this case is analogous to Alders. RCLA’s alleged activity of accepting donations and charging fees for religious programs does not allege RCLA is participating in or competing in the commercial market. There are no allegations RCLA maintains a separate, secular commercial enterprise available to the public, which could constitute commercial activity subject to the UCL. (See e.g. Pines v. Tomson, 160 Cal. App. 3d 370, 386 [nonprofit religious corporation operating a business directory constituted a business practice].) The Court does not find charging a fee for religious programs is sufficient to deem that conduct commercial in character for purposes of supporting a UCL claim. Thus, the FAC insufficiently alleges a business act or practice within the meaning of the UCL.

Accordingly, the Court SUSTAINS RCLA’s Demurrer to the Eleventh Cause of Action for Unfair Competition WITH LEAVE TO AMEND.

7. Plaintiff’s Public Disclosure of Private Facts Cause of Action is Properly Pled

The elements of the tort of public disclosure of private facts are: (1) public disclosure, (2) of a private fact, (3) which would be offensive and objectionable to the reasonable person, and (4) which is not of legitimate public concern. (See Taus v. Loftus (2007) 40 Cal.4th 683, 717.)

RCLA argues this claim fails to allege RCLA disclosed Plaintiff’s private images to third parties. (See Dem. at 13:2-4.) RCLA argues the FAC’s conclusory ratification allegations are not admitted on demurrer and insufficient to allege that RCLA authorized the disclosure. (See id., at 13:11-14.)

In opposition, Plaintiff argues the allegations that RCLA left the material accessible and took no steps to remove them constitutes RCLA’s continuing publication of the material. (See Opp. at 18:24-19:4.)

In reply, RCLA argues non-removal of a publication is not the affirmative act the tort requires. (See Reply at 8:18.) RCLA reasserts its conclusory ratification allegations are not admitted on demurrer. (See id., at 9:6-8.)

The Court finds Plaintiff’s public disclosure claim is sufficiently alleged based on Plaintiff’s ratification theory. A principal may ratify an agent’s act through either confirmatory conduct or conduct inconsistent with disapproval. (See Dickinson v. Cosby (2019) 37 Cal.App.5th 1138, 1159.) Here, the FAC alleges Elias disclosed Plaintiff’s private images and “RCLA, through its knowledge, acquiescence, and failure to act, ratified the public disclosure by allowing such material to remain accessible on RCLA affiliated systems and by failing to take any reasonable steps to remove, secure, investigate, or prevent further dissemination.” (FAC, ¶¶ 209, 211.) The Court does not find the allegation RCLA failed to remove a publication Elias uploaded onto its electronic systems equates to alleging RCLA published Plaintiff’s image. However, by alleging RCLA failed to remove or prevent further dissemination, Plaintiff sufficiently alleges RCLA ratified Elias’ publication of Plaintiff’s photograph as it alleges conduct inconsistent with disapproval.

The Court OVERRULES RCLA’s Demurrer to the Twelfth Cause of Action for Public Disclosure of Private Facts.

V. MOTION TO STRIKE

A. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See *id.* at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form, or in the procedures pursuant to which it was filed.” (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B. Analysis

RCLA moves to strike the following from the FAC:

- (1) Alter ego allegations at ¶¶ 11-14;
- (2) Authorization, financing, and ratification allegations at ¶¶ 4, 14, 99136, 185, 211;
- (3) Diversion of funds allegations at ¶¶ 12(c) and (h), 15(f), 105 158, 179(d), 184, 191, 203, 205;
- (4) Punitive damages allegations and prayer at ¶¶ 138, 181, 187, 216, 219, 224-225, 229.

The Court notes paragraphs 136, 138, 181, 185, 187, 179(d), 184, 191 comprise causes of action which did not survive demurrer. The Court will address the Motion with respect to the surviving allegations RCLA seeks to strike.

1. Procedural issues

The parties dispute whether RCLA's Notice of Motion and Motion comply with Rules of Court, rules 3.1322 and 3.1113. [4]

The Court finds the Notice and Motion substantially comply with the rules as they identify the paragraphs RCLA seeks to strike and the relevant quoted portions. Accordingly, this is not a basis for denying RCLA's Motion in its entirety.

2. Alter Ego

“In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone.” (Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523, 538.) When these conditions are met, courts disregard the corporate structure and impute the actions of a corporation onto its owner or parent. (See *McLaughlin v. L. Bloom Sons Co.* (1962) 206 Cal.App.2d 848, 851-852.)

In determining whether to apply the doctrine, California courts consider a number of factors which include but are not limited to (1) inadequate capitalization, (2) commingling of funds, records, and other assets, (3) disregard of corporate formalities (e.g., stock issuance, holding board meetings, keeping of minutes, election of officers and directors, segregation of corporate records), (4) the same equitable ownership in the two entities, (5) the same directors and officers, (6) confusion about corporate identity, (7) use of the same offices and employees, (8) use of subsidiary as a mere shell or conduit for the affairs of the parent, and (9) lack of segregation of corporate records. (*Brooklyn Navy Yard Cogeneration Partners, L.P. v. Superior*

Court (Parsons Corp.) (1997) 60 Cal.App.4th 248, 258.)

There is not a heightened pleading standard for alter ego theory; it is adequate for a plaintiff to allege “ultimate rather than evidentiary facts.” (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236 [internal quotations and citation omitted].) Moreover, “less particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff, which certainly is the case” when analyzing alter ego theory at the pleading stage. (Id.)

RCLA argues the alter ego allegations are conclusory; the FAC fails to plead that RCLA and Elias were not meaningfully separate and that inequity would result from recognizing RCLA’s separate existence. (See Mot. at 4:21, 5:5-7, citing Leek v. Cooper (2011) 194 Cal.App.4th 399, 415-416.)

In opposition, Plaintiff argues the FAC sufficiently pleads ultimate facts. (See Opp. at 4:25-28, citing Rutherford, 223 Cal.App.4th at 235-36.)

In reply, RCLA argues the FAC recites the Rutherford categories as labels without supporting facts. (See Reply at 3:28.)

The Court finds the alter ego allegations sufficiently plead ultimate facts at paragraphs 12 and 13 to support the two requirements, unity of interest and inequitable result, to the application of the alter ego theory. RCLA’s reliance on Leek is misplaced, because in that case the plaintiff alleged no facts showing a unity of interest and inequitable result from treatment of the corporation as the sole actor. (See Leek, 194 Cal.App.4th at 415.) However, here, the Court finds the FAC pleads ultimate alter ego allegations similar to those found sufficient in Rutherford. Thus, the Court DENIES RCLA’s Motion to Strike alter ego allegations.

3. Authorization and Ratification

A principal may ratify an agent’s act through either confirmatory conduct or conduct inconsistent with disapproval. (See Dickinson v. Cosby (2019) 37 Cal.App.5th 1138, 1159.) “Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort.” (Ratcliff v. The Roman Catholic Archbishop of Los Angeles (2022) 79 Cal.App.5th 982, 1003, citing C.R. v. Tenet Healthcare Corp (2009) 169 Cal.App.4th 1094, 1110-1111.)

RCLA argues the authorization and ratification allegations are conclusory and unsupported by factual allegations showing corporate authorization or ratification by a qualifying RCLA actor. (See Mot. at 5:14-16.) RCLA argues Section 3294(b) requires qualifying corporate conduct. (See id., at 6:3-8.)

In opposition, Plaintiff argues ratification may be established by conduct, and the FAC sufficiently pleads RCLA did not investigate Elias’ known actions or discipline him. (See Opp. at 5:19-27, citing C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110-1112.)

In reply, RCLA argues the FAC identifies no qualifying RCLA actor, other than Elias himself, who learned of the specific conduct and adopted it. (See Reply at 4:27-28.)

The Court finds the FAC sufficiently pleads a ratification theory. The FAC alleges RCLA, including but not limited to those tasked with administrative, technical, and ministry-support functions, knew of Elias’ conduct and took no corrective measures, on the contrary, RCLA financed his actions and failed to remove the images of Plaintiff Elias uploaded to RCLA electronic systems. (See FAC, ¶¶ 97-99, 136, 211.) The Court finds the FAC sufficiently alleges RCLA took actions inconsistent with disapproval from which ratification may be reasonably inferred. Thus, the Court DENIES RCLA’s Motion to Strike authorization and ratification allegations.

4. Diversion of Funds

RCLA argues the FAC makes conclusory allegations that RCLA funds were commingled with and used for Elias' personal use. RCLA argues allegations of personal use are unsupported because the factual allegation at paragraph 12(d) pleads Elias obtained RCLA funds to give to Plaintiff and thus the conclusory allegations are unsupported. (See Mot. at 7:18-20.)

In opposition, Plaintiff argues the FAC does not allege only RCLA paid Plaintiff, it also alleges RCLA's funds were used for Elias's personal expenses. (See Opp. at 6:8-16.)

In reply, RCLA argues Plaintiff concedes in her opposition she has not seen RCLA's general ledger and thus she cannot make conclusory allegations that RCLA funds were diverted to Elias for his personal use. (See Reply at 6:7-13.)

The Court agrees with Plaintiff. The Court finds the FAC sufficiently pleads ultimate facts, which are accepted as true at the pleadings stage, showing that RCLA funds were diverted to Elias for his personal use. Plaintiff does not need to specifically allege each date Elias diverted RCLA funds or for what specific item or conduct he used those funds for.

Thus, the Court DENIES RCLA's Motion to Strike diversion of funds allegations.

5. Punitive Damages and Prayer

A complaint including a request for punitive damages must also include allegations showing that the plaintiff is entitled to such an award. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A plaintiff may seek punitive damages for "oppression, fraud or malice" by the defendant. (See Civ. Code, § 3294(a).) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury. (See id., § 3294(c)(3).)

To recover punitive damages from a corporation, a plaintiff must also plead and prove that "authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294(b).) "[T]he imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.)

RCLA argues the FAC fails to allege advance knowledge, authorization, ratification, or personal wrongful conduct by an identified officer, director, or managing agent of the entity. (See Mot. at 8:14-25.)

In opposition, Plaintiff argues the FAC pleads Elias is a managing agent or officer of RCLA. (See Opp. at 7:9-18.)

In reply, RCLA argues Elias' managing-agent status is not pled. (See Reply at 7:15.)

The Court finds the punitive damages allegations are sufficiently plead as paragraph 14 alleges Elias was a managing agent of RCLA. (See FAC, ¶ 14.) Thus, the FAC pleads that at least one of RCLA's managing agents ratified Elias' conduct.

The Court DENIES RCLA's Motion to Strike the punitive damages allegation and prayer.

In sum, the Court DENIES RCLA's Motion to Strike in its entirety.

VI. CONCLUSION

Based on the foregoing, the Court SUSTAINS RCLA's Demurrer to the Second Cause of Action for Sexual Harassment (Civil Code § 51.9) and Seventh Cause of Action for Breach of Fiduciary Duty WITHOUT LEAVE TO AMEND.

The Court SUSTAINS RCLA's Demurrer to the Sixth Cause of Action for Negligence, Eighth Cause of Action for Negligent Hiring, Supervision, and Retention, Ninth Cause of Action for Money Had and Received/Unjust Enrichment, and Eleventh Cause of Action for Unfair Competition WITH LEAVE TO AMEND.

The Court OVERRULES RCLA's Demurrer to the Twelfth Cause of Action for Public Disclosure of Private Facts.

The Court DENIES RCLA's Motion to Strike.

Finally, the Court advances the Case Management Conference currently scheduled for October 6, 2026, and the demurrer currently set for October 8, 2026, to September 18, 2026, at 8:30 a.m. The Court will wait to set a deadline for Plaintiff to amend her complaint in light of the foregoing until after the hearing on Elias's demurrer that day.

IT IS SO ORDERED.

DATED: August 11, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] Plaintiff alleges alter ego and ratification theories. (See FAC, ¶¶ 11-14.) The former would be inapplicable as to this claim as Plaintiff is not seeking to hold an individual liable for the misconduct of an entity, but rather the reverse. While ratification, which is an alternate theory to vicarious liability, applies to a § 51.9 cause of action, Plaintiff fails to meet the threshold issue of pleading a § 51.9 claim against RCLA's alleged agent, Elias, as discussed above. (See C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1111.)

[3] RCLA's position appears to be that the negligence claim is duplicative of the negligent hiring, supervision, and retention claim. The Court agrees that in large part, it is. However, the FAC alleges one theory that may support a direct negligence claim – that RCLA ignored the storage of intimate images of women on RCLA systems. Thus, the Court will address whether the FAC sufficiently alleges a negligence claim for direct liability against RCLA.

[4] "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Rules of Court, rule 3.1322.) Rule 3.1113 concerns the contents of a memorandum.